THE STATE

Versus

SHADRECK SIBANDA

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 13 OCTOBER 2025

Assessors: Mr Mbizo
Mrs Tshuma

Criminal trial

K Jaravaza, for the state
T Mavula, for the accused

NDUNA J: The deceased was admitted into hospital as a 'person unknown'. He had been brought by ambulance who it seems they advised that they had picked him after he had been assaulted. It follows that his autopsy was done upon a person who was unknown. The autopsy established that he had been assaulted and suffered injuries which led to his death which was described as: -

1. Epidural haematoma
2. Head injury and,
3. Assault.

The post mortem noted that he had suffered the following injuries:

1. Bruised scalp on the left fronto-paritall region
2. Hairline fracture of the left parietal region 7cm
3. Huge epidural haematoma of the left parietal region extending to the frontal, temporal and occipital regions. Brian midline shifts to the right

It was also noted that severe force was used to cause the above injuries. The death had occurred 08th January 2024. He was only identified on the 12th January 2024.
The deceased on a date which could be 6th January 2024 was drinking at the state witness' residence. They started to consume liquor and were consuming strong stuff. During the late hours of the day, they were joined by the accused person. They

consumed all the beers that had been bought. Still they wanted to consume more. The accused gave Pilate Ndlovu an amount of USD10 for the purchase of more beer. Pilate Ndlovu then sent the deceased to purchase more beer. He was specifically told to buy two Whiskey. Instead the accused did not find the two Whiskey beer and ended up buying another type; he bought 2 x 200ml star cans and 2 x 500ml dragon energy drink. The deceased then brought back 50 Rand as change.

Pilate Ndlovu was of the view that the deceased had stolen some money.
It is true that there was a fight at the home in question. However, the accused denies ever assaulting the deceased. He actually states that it was him who directed that the deceased ran away. The accused alleges that the deceased was assaulted by Pilate Ndlovu.

The evidence of the witness need to be corroborated. He was drunk on the night in question after he had been drinking beer which could be described as strong staff. In his initial testimony he had said that the deceased had produced his knife in the day as he was in a near fight confrontation with Pilate Ndlovu. But later in his testimony he then said the knife was produced in the evening when he was being assaulted by the two.

The court can act on the evidence of a single witness. It is, of course, permissible in terms of *s 269 of the Criminal Procedure and Evidence Act [Chapter 9:07]* for a court to convict a person on the evidence of a competent and credible witness. The test formulated by in *R v Mokoena 1932 OPD 79 at 80* was that the evidence of such a single witness must be found to be *"clear and satisfactory in every material respect*".

In *S v Sauls & Ors 1981 (3) SA 172 (A) at 180E-G,* the court said:

> "*There is no rule of thumb or formula to apply when it comes to a consideration of the credibility of the single witness. The trial judge will weigh his evidence, will consider its merits and demerits and, having done so, will decide whether it is trustworthy and whether, despite the fact that there are shortcomings or defects or contradictions in the testimony, he is satisfied that the truth has been told ... It has been said more than once that the exercise of caution must not be allowed to displace the exercise of common sense."*

There is no magic formula which determines when a conviction is warranted upon the testimony of a single witness. His evidence must be approached with caution and the merits thereof weighed against any factors which militate against its credibility. In essence, a common-sense approach must be applied. If the court is convinced beyond

a reasonable doubt that the sole witness has spoken the truth, it must convict, notwithstanding that he was in some respects unsatisfactory. See also *S v Nathoo Supermarket (Pvt) Ltd 1987 (2) ZLR 136 (S) at 138D-F. G*

The evidence received in this is not fool proof. As alluded to above, the witness at first stated that the knife was produced by the deceased during the confrontation with Pilate Ndlovu in the absence of the accused. Later, the witness was of the view that the deceased had produced his knife at the time he was assaulted in the night. It was not clear how he had heard Pilate Ndlovu stating that the deceased ought to be assaulted. He spoke as if they had a previous issue or reasons upon which he wanted the deceased assaulted other than the issue of the manner in which the deceased had bought the beer. On another note this was a case which could not ne prosecuted successfully in the absence of Pilate Ndlovu; his co accused.

Further, the conduct of the accused of visiting Pilate Ndlovu's residence shows that the accused was not aware of the allegations. He had not heard that he is being looked for and that Pilate Ndlovu was on the run. That is clearly the evidence of a man who is not aware of the alleged murder.

The court is left in reasonable doubt of the accused's guilty.

He is accordingly found not guilty and acquitted

The National Prosecuting Authority, state's legal practitioners
Dube Legal Practice, accused's legal practitioners